

Tamil Nadu Merged States (Laws) Act, 1949

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State of Tamilnadu- Act

Tamil Nadu Merged States (Laws) Act, 1949

TAMILNADU

India

Tamil Nadu Merged States (Laws) Act, 1949

Act 35 of 1949

Published on 29 December 1949

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Tamil Nadu Merged States (Laws) Act, 1949

(Tamil Nadu Act

35 of 1949

)

Received the assent of the Governor on the 29th December 1949 and first published in the Fort St. George Gazette on the 30th December 1949.

An Act to extend certain laws to the States of Pudukkottai, Banganapallee and Sandur which are administered as parts of the Province of Madras

Whereas by an order made under section 290-A of the Government of India Act, 1935, provision has been made for the administration of the States of Pudukkottai, Banganapallee and Sandur as if they formed part of the [Province of Madras]

[The expression 'Province of Madras' shall stand unmodified - vide the Tamil Nadu Adaptation of Laws Order, 1970.]

;

And Whereas it is expedient to provide that certain laws should be extended to, and by virtue of such extension, should be in force in the said States; It is hereby enacted as follows : -

1.

Short title and commencement.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Merged States (Laws) Act, 1949.

(2)

It shall come into force on the 1st day of January 1950.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context, -

(1)

the expression "merged States" means the States of Pudukkottai, Banga-napallee and Sandur, and the expression "merged State" means any of those States;

(2)

the expression "new Provinces" means the Chief Commissioners Provinces constituted by the States Merger (Chief Commissioners Provinces) Order, 1949, as amended by the States Merger (United Provinces) Order, 1949.

3.

Extension of enactments.

- So much of the enactments specified in the First Schedule as extends to the [[Province]

[The expression 'Province of Madras' shall stand unmodified, vide the Tamil Nadu Adaptation of Laws Order, 1970.]

of Madras] and relates to matters with respect to which the [Provincial]

[The word 'Provincial' shall stand unmodified, by the Adaptation of Laws (Amendment) Order, 1950.]

Legislature has power to make laws for the [Province]

[The word 'Province' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]

is hereby extended to, and shall be in force in, the merged State or States specified in the corresponding entry in the first column thereof.

4.

Interpretation of enactments as extended.

- In any enactment specified in the First Schedule, notwithstanding anything contained in the General Clauses Act, 1897 (Central Act X of 1897), or in the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

General Clauses Act, 1867 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act 1 of 1867), or in the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

General Clauses Act, 1891 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act 1 of 1891) -

(a)

any reference, by whatever form of words, to the Acceding States shall be construed as not including a reference to any of the merged States or to any of the States (other than the United State of Saurashtra) mentioned in the States Merger

(Chief Commissioners Provinces) Order, 1949, as amended by the States Merger (United Provinces) Order, 1949;

(b)

any reference, by whatever form of words, to Indian British subjects shall be deemed to include a reference to persons who, immediately before the 1st day of August 1949, were subjects of any of the merged States or of any of the States (other than the United State of Saurashtra) mentioned in the States Merger (Chief Commissioners Provinces) Order, 1949, as amended by the States Merger (United Provinces) Order, 1949;

(c)

any reference, by whatever form of words, to the Provinces generally or to the Chief Commissioners Provinces generally shall be construed as including a reference to the new Provinces; and

(d)

any reference, by whatever form of words, to the Province of Madras shall be construed as including a reference to the merged State or States concerned.

5.

Repeal of corresponding laws.

- If, immediately before the commencement of this Act, there is in force in any merged State, an Act, Ordinance, Regulation or other law corresponding to an enactment specified in the First Schedule, whether such Act, Ordinance, Regulation or other law is in force by virtue of an Order under the Extra-Provincial Jurisdiction Act, 1947 (Central Act XLVII of 1947), or by virtue of any other Legislative power, such corresponding law shall, upon the commencement of this Act, stand repealed to the extent to which the law relates to matters with respect to which the [Provincial]

[The word 'Provincial' shall stand unmodified, vide by the Tamil Nadu Adaptation of Laws Order, 1970.]

Legislature has power to make laws for the [Province]

[The word 'Province' shall stand unmodified, vide by the Adaptation of Laws (Amendment) Order, 1950.]

:

Provided that nothing contained in this section shall affect the operation of the transitional provisions contained in the Schedule to Local Administration Department Notifications Nos. 253 and 254, dated 29th March 1949, published at pages 125 and 126 of Part I-A of the [Fort St. George Gazette]

[Now the Tamil Nadu Government Gazette.]

, dated the 29th March 1949.

6.

Savings.

(1)

The repeal by section 5 of this Act of any corresponding law in force in any merged State immediately before the commencement of this Act shall not affect -

(a)

the previous operation of any such law, or

(b)

any penalty, forfeiture or punishment incurred in respect of any offence committed against any such law, or

(c)

any investigation, legal proceeding or remedy in respect of any such penalty, forfeiture or punishment,

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(2)

Subject to the provisions of sub-section (1), anything done or any action taken, including any appointment or delegation made, notification, order, instruction or direction issued, rule, regulation, form, by-law or scheme framed, certificate, patent, permit or licence granted or registration effected, under such corresponding law shall be deemed to have been done or taken under the corresponding provision of the enactment as now extended to, and in force in, the merged State and shall continue in force accordingly unless and until superseded by anything done or any action taken under the said enactment [or by virtue of the operation of section 16]

[These words and figures were added by section 2 of the Tamil Nadu Merged States (Laws) Amendment Act, 1951 (Tamil Nadu Act XXXVIII of 1951) which came into force on the 1st day of January 1952.]

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7.

Powers of Courts and other authorities for purposes of facilitating application of laws.

- For the purpose of facilitating the application in any merged State of any enactment specified in the First Schedule, any Court or other authority may construe such enactment with such alterations not affecting the substance as may be necessary or proper to adapt it to the matter before the Court or other authority.

8.

Extension of [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act III of 1931.

(1)

The [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Motor Vehicles Taxation Act, 1931 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act III of 1931) as amended by subsection (2), is hereby extended to, and shall be in force in the merged States; and sections 4 to 7 shall apply in relation to that Act as if it had been included in the First Schedule.

(2)

The Act aforesaid shall be amended as follows : -

(a)

To section 2, clause (iii), the following words shall be added at the end, namely : -

"and includes in the area which formerly formed part of the State of Pudukkottai, a panchayat constituted under any enactment for the time being in force in that area."

(b)

To section 19, the following Explanation shall be added, namely :-

"Explanation. - The provisions of this section shall apply in relation to any area which formerly formed part of the State of Pudukkottai, Banganapallee or Sandur as if the [Provincial]

[The word 'Provincial' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]

Government had power to pay such compensation to the local bodies in the said area as the [Provincial]

[The word 'Provincial' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]

Government may, by order determine."

9.

Extension of Madras Act VI of 1932.

(1)

The Madras Co-operative Societies Act, 1932 (Madras Act VI of 1932), amended by sub-section (2), is hereby extended to, and shall be in force in, the merged States; and sections 4 to 7 shall apply in relation to that Act as if it had been included in the First Schedule.

(2)

To sub-section (1) of section 62 of the Act aforesaid, the following paragraph shall be added, namely : -

"Every society which has been registered under the law applicable to cooperative societies in the areas which formerly formed part of the State of Pudukkottai, Banganapallee or Sandur and the by-laws of which are not in consistent with the express provisions of this Act or any rule made thereunder, shall, if the Registrar by an order in writing so declares, be deemed to be registered under this Act and its by-laws shall continue in force until they are altered or rescinded."

10.

Extension of Tamil Nadu Act X of 1937.

(1)

The [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Prohibition Act, 1937 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act X of 1937), as amended by sub-section (3), is hereby extended to, and shall be in force in, the States of Pudukkottai and Banganapallee; and sections 4 to 7 shall apply in relation to that Act as if it had been included in the First Schedule.

(2)

The Act aforesaid as amended by sub-section (3), is hereby extended to the State of Sandur; and when the whole of that Act is brought into force in that State, sections 4 to 7 shall apply in relation to that Act as if it had then been included in the First Schedule.

(3)

To section 2 of the Act aforesaid, the following Explanation shall be added, namely : -

"Explanation. - For the removal of doubts, it is hereby declared that if a notification is issued in pursuance of the foregoing proviso, in respect of any area which formerly formed part of the State of Pudukkottai, Banganapallee or Sandur, the enactments mentioned in the Schedule with any subsequent statutory modifications thereof shall come into force in such area with effect on and from such date as may be specified in the notification."

11.

Extension of [Madras Acts]

[The expression 'Madras Act' shall stand unmodified - vide the Tamil Nadu Adaptation of Laws Order, 1970.]

II of 1948 and XXII of 1948.

- The [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Silkworm Diseases (Prevention and Eradication) Act, 1948 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act II of 1948), and the Madras Weights and Measures Act, 1948 [Madras Act]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

XXII of 1948), are hereby extended to the merged States; and when the whole of either of the said Acts is brought into force in any merged State, sections 4 to 7 shall apply in relation to that Act as if it had then been included in the First Schedule.

12.

Extension of [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act VII of 1949.

- The Madras City Police and Gaming (Amendment) Act, 1949 [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act VII of 1949), is hereby extended to the merged States.

13.

Special provision in respect of Banganapallee.

- Any judgment delivered, order made or sentence passed before the 1st day of April 1949, by any Court, civil or criminal, having jurisdiction in respect of the State of Banganapallee or any part thereof shall, for all purposes including execution, appeals and the like, take effect and shall be deemed always to have taken effect, as if it had been delivered, made or passed by the Court which would have been competent to deliver, make or pass such judgment, order or sentence on the said date.

14.

Special provisions in respect of Sandur.

(1)

Sections 15, 15-A, 16, 30, 31 and 32 of the Police Act, 1861 (Central Act V of 1861), as in force in the [Province of

Madras]

[The word 'Province' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]
are hereby extended to, and shall be in force in, the State of Sandur.

(2)

(a)

So much of the Sandur State Railways (Jurisdiction) Proclamation, 1947, issued by the Rule of the State of Sandur on the 15th day of August 1947 as relates to the exercise of powers by the police force belonging to that State in the railway lands in that State shall stand repealed.

(b)

Any action taken by any member of the police force belonging to the [Province of Madras]

[The word 'Province' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]

on or after the 15th day of August 1947 and before the commencement of this Act in the railway lands in the State of Sandur shall be deemed to have been taken by a member of the police force belonging to that State in pursuance of the power conferred by the Proclamation aforesaid.

(3)

(a)

In regard to the first reconstitution in accordance with the provisions of the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

[Local Boards Act, 1920]

[Now the Tamil Nadu Districts Boards Act, 1920 (Tamil Nadu Act XIV of 1920). This Act was repealed now.]

[Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XIV of 1920) as extended to the State of Sandur by this Act, of panchayats in existence at the commencement thereof, and otherwise in first giving effect to the said provisions, they shall be read subject to the rules in the Second Schedule.

(b)

The [Provincial]

[The word 'Provincial' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]

Government shall have power by notification in the [Fort St. George Gazette]

[Now the Tamil Nadu Government Gazette.]

to amend, add to or repeal the rules in the said Schedule.

(4)

(a)

Any judgment delivered, order made or sentence passed, before the commencement of this Act by any Court, civil or criminal, having jurisdiction in respect of the State of Sandur or any part thereof shall, for all purposes, including execution, appeals and the like, take effect and shall be deemed always to have taken effect as if it had been delivered, made or passed by the Court which would have been competent to deliver, make or pass such judgment, order or sentence immediately after such commencement.

(b)

The High Court may, by general or special order, transfer any proceeding pending immediately before the commencement of this Act in any of the Courts, civil or criminal, having jurisdiction in respect of the State of Sandur or any part thereof, to any Court which would have jurisdiction to entertain such proceeding if it were instituted immediately after such commencement; and the Court to which the proceeding may be so transferred, shall have full power to dispose of the same as if it had been originally instituted in that Court.

15.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act or of any enactment extended to any merged State by this Act, the [Provincial]

[The word 'Provincial' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]

Government, as occasion may require, may, by order, do anything which appears to them necessary for the purpose of removing the difficulty.

16.

[Extension of subsidiary laws to the merged States.

[Added by section 3 of the Tamil Nadu Merged States (Laws) Amendment Act, 1951 (Tamil Nadu Act XXXVIII of 1951), which came into force on the 1st day of January 1952.]

(1)

All subsidiary laws which, immediately before the 1st day of January 1952, extend to, or are in force in, the taluk specified in column (1) of the table below but do not extend to, or are not in force in, the merged State specified in the corresponding entry in column (2) of that Table, shall, as from that day, extend to, or as the case may be, come into force in such merged State : -

Taluk

Merged State

1

2

Tiruchirappalli taluk of the Tiruchirappalli district

Pudukkottai

Kurnool taluk of the Kurnool district

Banganapallee

Bellary taluk of the Bellary district

Sandur

(2)

Sections 4, 7 and 15 shall be construed as if the reference to "enactment" occurring in them included also a reference to the subsidiary laws mentioned in sub-section (1).

Explanation. - In this section "subsidiary law" means -

any rule, regulation, by-law, form, notification, order, instruction or direction issued, any scheme framed,

any certificate, patent, permit or licence granted,

any registration effected, or

any other thing done or action taken,

under any of the enactments extended to any merged State or States by this Act.]

First Schedule

(See section 3)

Name of States

Year

Number

Short title

1

2

3

4

Central Acts

Pudukkottai, Banganapalle and Sandur

1841

XXIV

The Illusory Appointments and Infants Properly

Act, 1841.

Do.

1850

XXXVII

The Public Servants (Inquiries) Act, 1850.

Do.

1851

VIII

The Indian Tolls Act, 1851.

Do.

1854

XXXI

The Conveyance of Land Act, 1854.

Do.

1855

XXIII

The Mortgaged Estates Administration Act, 1855.

Do.

1856

XV

The Hindu Widows Re-marriage Act, 1856.

Do.

1860

XXI

The Societies Registration Act, 1860.

Do.

1863

XX

The Religious Endowments Act, 1863.

Do.

1870

VII

The Court-fees Act, 1870.

Do.

1871

I

The Cattle-trespass Act, 1871.

Do.

1875

XVIII

The Indian Law Reports Act, 1875.

Do.

1876

XIX

The Dramatic Performances Act, 1876.

Do.

1878

I

The Opium Act, 1878.

Pudukkottai, Banganapalle and Sandur

1878

VI

The Indian Treasure-trove Act, 1878.

Do.

1880

XII

The Kazis Act, 1880.

Do.

1882

IV

The Transfer of Property Act, 1882.

Do.

1883

XIX

The Land Improvement Loans Act, 1883.

Do.

1884

XII

The Agriculturist's Loans Act, 1884.

Do.

1886

VI

The Births, Deaths and Marriages Registration
Act, 1886.

Do.

1887

VII

The Suits Valuation Act, 1887.

Do.

1887

IX

The Provincial Small Cause Courts Act, 1887.

Do.

1890

VI

The Charitable Endowments Act, 1890.

Do.

1894

I

The Land Acquisition Act, 1894.

Do.

1894

IX

The Prisons Act, 1894.

Do.

1895

XV

The Crown Grants Act, 1895.

Do.

1897

III

The Epidemic Diseases Act, 1897.

Do.

1897

XIV

The Indian Fisheries Act, 1897.

Do.
1899
II
The Indian Stamp Act, 1899.
Do.
1899
XIII
The Glanders and Farcy Act, 1899.
Do.
1900
III
The Prisoners Act, 1900.
Do.
1908
XIV
The Indian Criminal Law (Amendment) Act, 1908.
Do.
1912
VIII
The Wild Birds and Animals Protection Act, 1912.
Do.
1914
II
The Destructive Insects and Pests Act, 1914.
Do.
1914
IX
The Local Authorities Loans Act, 1914.
Do.
1917
XXVI
The Transfer of Property Validating Act, 1917.
Do.
1918
II
The Cinematograph Act, 1918.
Do.
1918
X
The Usurious Loans Act, 1918.
Do.
1920
XIV
The Charitable and Religious Trusts Act, 1920
Do.
1920
XXXIII
The Identification of Prisoners Act, 1920.
Do.
1920
XXXIX

The Indian Election Offences and Inquiries Act,
1920.

Do.

1922

XXII

The Police (Incitement to Disaffection) Act,
1922.

Do.

1923

III

The Cotton Transport Act, 1923.

Do.

1923

XLII

The Mussalman Wakf Act, 1923.

Do.

1925

XXXIX

The Indian Succession Act, 1925.

Do.

1926

XII

The Contempt of Courts Act, 1926.

Do.

1928

XII

The Hindu Inheritance (Removal of Disabilities)
Act, 1928.

Do.

1929

II

The Hindu Law of Inheritance (Amendment) Act,
1929.

Do.

1929

XXI

The Transfer of Property (Amendment)
Supplementary Act, 1939.

Do.

1930

II

The Dangerous Drugs Act, 1930.
Pudukkottai, Banganapalle and Sandur

1931

XXIII

The Indian Press (Emergency Powers) Act, 1931.

Do.

1932

XI

The Public Suits Validation Act, 1932.

Do.

1932

XXIII

The Criminal Law (Amendment) Act, 1932.

Do.

1934

XXX

The Petroleum Act, 1934.

Do.

1937

I

The Agricultural Produce (Grading and Marking)
Act, 1937.

Do.

1937

XVIII

The Hindu Women's Rights to Property Act, 1937.

Do.

1938

X

The Cutchi Memons Act, 1938.

Do.

1939

XXX

The Commercial Documents Evidence Act, 1939.

Do.

1940

XXIII

The Drugs Act, 1940.

Do.

1942

XIX

The Industrial Statistics Act, 1942.

Do.

1944

XVIII

The Public Debt Act, 1944.

Central Acts of Local Application

Do.

1839

VII

The Tamil Nadu Rent and Revenue Sales Act, 1839.

Do.

1849

X

The Tamil Nadu Revenue Commissioner Act, 1849.

Do.

1857

VII

The Chennai Uncovenanted Officers Act, 1857.

Do.

1858

I

The Tamil Nadu Compulsory Labour Act, 1858.

Do.

1859

XXIV

The Tamil Nadu District Police Act, 1859.

Do.

1873

III

The Tamil Nadu Civil Courts Act, 1873.

Do.

1882

XXI

The Tamil Nadu Forest Validation Act, 1882.

Madras Regulations

Do.

1802

III

The Tamil Nadu Administration of Estates

Regulation, 1802.

Do.

1802

XXVI

The Tamil Nadu Land Registration Regulation,

1802.

Do.

1803

I

The Tamil Nadu Board of Revenue Regulation,

1803.

Do.

1803

II

The Tamil Nadu Collectors Regulation, 1803.

Do.

1817

VII

The Tamil Nadu Endowments and Escheats

Regulation, 1817.

Do.

1817

VIII

The Tamil Nadu Revenue Recovery (Military

Proprietors) Regulation, 1817.

Do.

1819

II

The Madras State Prisoners Regulation, 1819.

Do.

1822

IX

The Tamil Nadu Revenue Malversation Regulation,
1822.

Do.

1828

VII

The Tamil Nadu Subordinate Collectors and
Revenue Malversation (Amendment) Regulation, 1828

Do.

1829

V

The Tamil Nadu Hindu Wills Regulation, 1829.

Pudukkottai, Banga-napalle and Sandur

1831

X

The Tamil Nadu Sale of Minors Estates
Regulation, 1831.

Madras Acts

Banganapalle

1862

IV

The Tamil Nadu Enfranchised Inams Act, 1862.

Pudukkottai, Banganapalle and Sandur

1864

II

The Tamil Nadu Revenue Recovery Act, 1864.

Do.

1865

VII

The Tamil Nadu Irrigation Cess Act, 1865.

Banganapalle

1866

IV

The Tamil Nadu Enfranchised Inams Act, 1866.

Pudukkottai, Banganapalle and Sandur

1867

I

The Tamil Nadu General Clauses Act, 1867.

Do.

1869

III

The Tamil Nadu Revenue Summonses Act, 1869.

Banganapalle

1869

VIII

The Tamil Nadu Inams Act, 1869.

Pudukkottai, Banganapalle and Sandur

1873

I

The Tamil Nadu Wild Elephants Preservation Act

1873.

Do.

1882

V

The Tamil Nadu Forest Act 1882.

Do.

1884

VI

The Tamil Nadu River Conservancy Act 1884

Do.

1888

II

The Tamil Nadu Places of Public Resort Act, 1888

Do.

1889

I

The Tamil Nadu Village Courts Act, 1888.

Do.

1890

II

The Canals and Public Ferries Act, 1890.

Do.

1891

I

The Tamil Nadu General Clauses Act, 1891

Do.

1893

V

The Tamil Nadu Revenue Enquiries Act, 1893

Do.

1894

I

The Tamil Nadu Board of Revenue Act, 1894

Banganapalle

1895

III

The Madras Hereditary Village-Officers Act, 1895

Pudukkottai, Banganapalle and Sandur

1898

V

The Malabar Wills Act, 1898.

Do.

1899

III

The Tamil Nadu Registration of Births and Deaths

Act, 1899

Do.

1902

I

The Tamil Nadu Court of Wards Act, 1902.

Do.

1905

III

The Tamil Nadu Land Encroachment Act, 1905

Do.

1911

V

The Tamil Nadu Hackney Carriage Act, 1911.

Do.

1914

I

The Hindu Transfers and Bequests Act, 1914.

Do.

1914

IV

The Tamil Nadu Medical Registration Act, 1914.

Do.

1914

VII

The Madras Deputy Collectors Act, 1914.

Do.

1918

I

The Mappilla Succession Act, 1918.

Do.

1918

III

The Madras Prevention of Adulteration Act, 1918.

Do.

1919

III

The Tamil Nadu Agricultural Pests and Diseases Act, 1919.

Do.

1919

VII

The Tamil Nadu Forest (Amendment) Act, 1919.

Do.

1920

IV

The Tamil Nadu Children Act, 1920.

Pudukkottai

1920

V

The Tamil Nadu District Municipalities Act, 1920.

Pudukkottai, Banganapalle and Sandur

1920

VII

The Tamil Nadu Town Planning Act, 1920.

Do.

1920

VIII

The Tamil Nadu Elementary Education Act, 1920.

Do.
1920
XIV
The Tamil Nadu Local Boards Act, 1920.
Do.
1923
V
The Tamil Nadu State Aid to Industries Act,
1922.
Do.
1923
VIII
The Tamil Nadu Survey and Boundaries Act, 1923.
Do.
1926
III
The Tamil Nadu Nurses and Mid wives Act, 1926.
Banganapalle
1926
IV
The Tamil Nadu Village Officers Restoration Act,
1926.
Pudukkottai, Banganapalle and Sandur
1926
V
The Tamil Nadu Borstal Schools Act, 1925.
Do.
1927
II
The Tamil Nadu Hindu Religious Endowments Act,
1926.
Do.
1928
VIII
The Mappilla Wills Act, 1928.
Do.
1929
III
The Jains Succession Act, 1928.
Do.
1930
III
The Tamil Nadu Gaming Act, 1930.
Do.
1932
VII
The Tamil Nadu Cotton Control Act, 1932.
Do.
1933
XX
The Tamil Nadu Commercial Crops Markets Act,

1933.

Do.

1933

XXI

The Tamil Nadu Nambudri Act, 1932.

Do.

1933

XXII

The Tamil Nadu Marumakkattayam Act, 1932.

Do.

1934

X

The Tamil Nadu Co-operative Land Mortgage Banks
Act, 1934.

Do.

1935

VI

The Tamil Nadu Maternity Benefit Act, 1934.

Do.

1935

VII

The Tamil Nadu Debtors Protection Act, 1935.

Do.

1936

XVI

The Tamil Nadu Debt Conciliation Act, 1936.

Do.

1936

XVI

The Tamil Nadu Famine Relief Fund Act, 1936.

Do.

1937

III

The Tamil Nadu Probation of Offenders Act, 1936.

Do.

1937

IX

The Madras Payment of Salaries and Removal of
Disqualifications Act, 1937.

Do.

1938

IV

The Tamil Nadu Agriculturist Relief Act, 1938.

Do.

1938

V

The Tamil Nadu Traffic Control Act, 1938.

Do.

1938

XXI

The Removal of Civil Disabilities Act, 1938.

Do.

1939

III

The Tamil Nadu Public Health Act, 1939.

Do.

1939

V

The Tamil Nadu Electricity Duty Act, 1939.

Do.

1939

VI

The Tamil Nadu Sales of Motor Spirit Taxation Act, 1939.

Pudukkottai, Banga-napalle and Sandur

1939

IX

The Madras General Sales Tax Act, 1939.

Do.

1939

X

The Tamil Nadu Entertainments Tax Act, 1939.

Do.

1939

XVII

The Mappilla Marumakkatayam Act, 1938.

Banganapalle.

1939

XVIII

The Madras Restoration of Village Officers (Validation) Act, 1939.

Pudukkottai, Banganapalle and Sandur

1942

XIII

The Tamil Nadu Irrigation (Voluntary Cess) Act, 1942.

Do.

1943

XVI

The Madras Stamp (Increase of Duties) Act, 1943.

Do.

1943

XVIII

The Tamil Nadu Irrigation Works (Repairs, Improvement and Construction) Act, 1943.

Do.

1943

XXIII

The Tamil Nadu Pawnbrokers Act, 1943.

Do.

1945

XIII

The Tamil Nadu Prevention of Begging Act, 1945.

Do.

1947

V

The Tamil Nadu Temple Entry Authorization Act,
1947.

Do.

1947

IX

The Bar Councils and Legal Practitioners (Tamil
Nadu Amendment) Act, 1947.

Do.

1947

XXVI

The Madras Hindu Women's Rights to Property
(Extension to Agricultural Land) Act, 1947.

Do.

1947

XXXI

The Tamil Nadu Devadasis (Prevention of
Dedication) Act, 1947.

Do.

1947

XXXVI

The Tamil Nadu Shops and Establishments Act,
1947.

Do.

1948

I

The Tamil Nadu Home Guards Act, 1948.

Do.

1948

III

The Tamil Nadu Suppression of Disturbances Act,
1948.

Do.

1948

VI

The Tamil Nadu Restriction of Habitual Offenders
Act, 1948.

Do.

1949

VI

The Madras Hindu (Bigamy Prevention and Divorce)
Act, 1949.

Do.

1949

IX

The Tamil Nadu Aliyasantana Act, 1949.

Do.

1949

XIX

The Tamil Nadu Irrigation Tanks (Improvement)

Act, 1949.

Do.

1949

XX

The Tamil Nadu Sugar Factories Control Act,

1949.

Second Schedule

[See section 14(3)]

Transitional Provisions

The Sandur Municipality constituted under the Mysore Minor Municipalities Act, 1933 and every panchayat constituted under the Sandur Village Panchayats Act, 1939 shall be deemed to be a panchayat constituted under the [Tamil Nadu] [Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, (is amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.)]

Local Boards Act, 1920.

2. Notwithstanding anything contained in the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

[Local Boards Act, 1920]

[Now the Tamil Nadu Districts Boards Act, 1920 (Tamil Nadu Act XIV of 1920).]

, as applied to the Sandur State (hereinafter referred to as the said Act) -

(a)

(i)

the members of the Sandur Municipality holding office immediately before the 1st January 1950 shall be subject to the provisions of sections 56, 57 and 59 of the said Act, be deemed to be members of the Sandur Panchayat on and from that date;

(ii)

the term of office of the members of every panchayat holding office immediately before the 1st January 1950 and of the members of the panchayat referred to in sub-clause (i) shall extend to, or expire on, as the case may be, such date as the Provincial Government may fix, and the Provincial Government shall cause election to be held so that the newly elected members may come into office on the date fixed for the retirement of the old members;

(iii)

the Provincial Government may, from time to time, postpone any date fixed by them under sub-clause (ii) and fix another date in lieu thereof;

(b)

the president of the Sandur Municipality and of every panchayat holding office immediately before the 1st January 1950 shall, subject to the provisions of sub-sections (1) and (2) of section 15 and section 43 of the said Act, hold office as president of the panchayat concerned up to, or vacate office, on the date fixed under clause (a);

(c)

a meeting of the newly elected members of every panchayat shall be held on or as soon as may be after the said date on a day and at a time fixed by the Provincial Government or such other authority as may be empowered by them in this behalf for the election of the president;

(d)

the term of office of the newly elected members of every panchayat or the members elected in their places at casual vacancies shall expire at the end of three years, if the date fixed under clause (a) is the first day of November and in other cases, at the end of three years from the first day of November immediately preceding such date;

(e)

any vacancy in the office of president of any panchayat which is in existence on the 1st January 1950 or which occurs before the date fixed under clause (a) shall be filled by election by the panchayat;

(f)

any such vacancy in the office of an appointed member of a panchayat shall be filled by appointment by the [Provincial]
[The word 'Provincial' shall stand unmodified - vide the Adaptation of Laws (Amendment) Order, 1950.]

Government and in that of an elected member by election under the provision of the said Act on the basis of the electoral rolls in force on the 31st December 1949; and

(g)

any person elected or appointed as president or as member of a panchayat under clause (e) or (f) shall hold office only up to the date fixed under clause (a).

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